REPUBLIC OF ZAMBIA
SUPREME COURT OF ZAMBIA
JUDICIARY
13 MAR 2026
SUPREME COURT REGISTRY
P.O. BOX 50067, LUSAKA

IN THE SUPREME COURT OF ZAMBIA **APPEAL NO. 23/2025**
HOLDEN AT NDOLA **SCZ/8/11/2025**
(Constitutional Jurisdiction)

IN THE MATTER OF: **ARTICLES 1 (2) (3), 2 (a) AND (b), 5, 8 (b) (c) AND (e), 13, 18, 20, 28(1), 70, 72, 76(1), 118(2) (f), 128 (1) (a) (c) AND (3) (b) (c) AND 267 (1) 0 (a) OF THE CONSTITUTION OF ZAMBIA CHAPTER 1 OF THE LAWS OF ZAMBIA**

IN THE MATTER OF: **THE STANDING ORDERS OF THE NATIONAL ASSEMBLY 2024 MADE PURSUANT TO ARTICLE 77 (1) OF THE CONSTITUTION CHAPTER 1 OF THE LAWS OF ZAMBIA**

IN THE MATTER OF: **SECTIONS 3 AND 4 OF THE NATIONAL ASSEMBLY (POWERS AND PRIVILEGES) ACT, CHAPTER 71 OF THE LAWS OF ZAMBIA**

IN THE MATTER OF: **THE STATE PROCEEDINGS ACT, CHAPTER 71 OF THE LAWS OF ZAMBIA**

IN THE MATTER OF: **THE BREACH OF THE CONSTITUTIONAL PRINCIPLE OF SEPARATION OF POWERS BY THE SUBORDINATE COURT**

IN THE MATTER OF: **THE UNCONSTITUTIONAL EXERCISE OF JUDICIAL AUTHORITY BY THE SUBORDINATE COURT IN RELATION TO WORDS SPOKEN IN GOOD FAITH BY A MEMBER OF PARLIAMENT WITHIN THE PRECINCTS OF THE PARLIAMENTARY CHAMBERS**

IN THE MATTER OF: **THE JUDGMENT OF HON. CHIEF RESIDENT MAGISTRATE DAVIES CHIMBWILI DELIVERED ON 7TH APRIL 2025 IN THE MATTER OF THE PEOPLE V MUNIR ZULU CRMPC/009/2023**

IN THE MATTER OF: **THE DECLARATION OF VACANCY OF THE PARLIAMENTARY SEAT FOR THE LUMEZI CONSTITUENCY HELD BY MEMBER OF PARLIAMENT MUNIR ZULU**

B E T W E E N

MUNIR ZULU **APPELLANT**

AND

THE ATTORNEY GENERAL **1ST RESPONDENT**

DAVIES CHIBWILI (Sued as Chief Resident Magistrate) **2ND RESPONDENT**

Coram	:	**Musonda, DCJ, Mutuna and Chisanga, JJS On 14th November, 2025 and 13th March, 2026**
For the Appellant	:	**Mr. A. Nkunika, Nkunika and Chipeta Legal Practitioners**
For the Respondent	:	**Mr. C. Watopa, Principal State Advocate, Attorney General's Chambers**

J U D G M E N T

MUSONDA, DCJ, delivered the judgment of the Court.

Statutes referred to:

1. ***The Constitution of Zambia, CAP 1 as amended by the Constitution of Zambia (Amended ACT) No. 2 of 2026***
2. ***The National Assembly of Zambia (Powers and Privileges) ACT CAP. 12 of the Laws of Zambia***
3. ***The Penal Code, CAP. 87 of the Laws of Zambia***
4. ***The Supreme Court of Zambia Act, CAP. 25 of the Laws of Zambia***
5. ***The State Proceedings Act, CAP 71***

Cases referred to:

1. ***Roan Antelope Mining Corporation of Zambia PLC (In Receivership) v Transityre BV Michelin Export Facilities: SCZ Appeal No.173/2003***
2. ***Natural Valley Limited- v – Zambia Revenue Authority and Attorney-General: SCZ Appeal No. 12 of 2021***

1.0. INTRODUCTION

1.1. This appeal is arising at the behest of the Appellant by way of his reaction to a Ruling of the High Court (Chocho, J) in terms of which that lower court refused to grant an application which the Appellant had launched for the purpose of having criminal proceedings which had been

instituted and concluded against him (the Appellant) before the 2nd Respondent and which proceedings had, in point of fact, culminated in the Appellant's conviction, stayed.

1.2. The Appellant's search for the stay adverted to in the preceding paragraph was founded and anchored on a variety of relief which the Appellant had sought via a Petition he had earlier filed on 15th April, 2025 seeking, among other things, to have the High Court of Zambia declare the criminal proceedings alluded to above unconstitutional, null and void and, consequentially, to have the same quashed. Additionally, the Appellant sought to have Chocho, J grant him such further relief as the court below was going to deem just.

2.0. BACKGROUND

2.1. The history and background facts antecedent to this appeal are fairly straight forward and free from anything that can warrant extended debate and can, accordingly, be easily recounted.

2.2. The story starts on 21st March, 2023. On that day, the Appellant, then a member of parliament for Lumezi Constituency in the Eastern Province of the Republic of

Zambia, held a Press Conference within the precincts of the National Assembly of Zambia during which he, the Appellant, alleged that two (02) Cabinet Ministers and one businessman had been criminally engaged in corrupt activities or practices.

2.3. The Appellant's criminal allegations against the three high profile figures alluded to in the preceding paragraph became the subject of a criminal complaint to the enforcers of the Republic of Zambia's criminal laws who decided to arraign and prosecute the Appellant on three counts of criminal libel as this offence is created in section 91 of the Penal Code, Chapter 87, of the Laws of Zambia.

3.0. APPELLANT'S CRIMINAL PROSECUTION

3.1. The Appellant was duly prosecuted and subsequently convicted by the 2nd Respondent.

3.2. In the course of his prosecution, the Appellant raised an issue, namely, whether or not the 2nd Respondent had the requisite jurisdiction to hear or to continue hearing the criminal matter against him as earlier adverted to given that the Appellant was a serving Member of Parliament who enjoyed certain rights and privileges which were

associated with the fact that the press conference at which the crime for which he had been arraigned was (allegedly) committed within the precincts of the National Assembly of Zambia.

3.3. According to the Appellant, under the National Assembly of Zambia (Powers and Privileges) Act, Chapter 12 of the Laws of Zambia, he enjoyed certain rights and privileges as a Member of Parliament which legally immunized him against being criminally prosecuted for the offence earlier highlighted and in the circumstances which we momentarily alluded to above.

3.4. Leaving aside the Appellant's protest or objection as captured in 2.4 and 2.5 above, he also mounted an application by which he sought to have the 2nd Respondent refer his matter to the High Court so as to have that superior court interpret the meaning of section 191 of the Penal Code, Cap. 87 of the Laws of Zambia and the ramification of that meaning for his criminal prosecution.

3.5. The 2nd Respondent's reaction to the applications which have been adverted to in the last few paragraphs was in the negative.

3.6. Undoubtedly disappointed with the 2nd Respondent's reaction to his determined resistance to his criminal prosecution, the Appellant decided to approach the Constitutional Court by way of filing a petition in that Court on 3rd April, 2025.

3.7. The Appellant's petition in 3.6 above was founded on Articles 128(2) and 76(1) of the Constitution of Zambia as amended by the Constitution of Zambia (Amendment) Act No. 2 of 2016 as read with sections 3 and 4 of the National Assembly of Zambia (Powers and Privileges) Act CAP. 12.

3.8. The Appellant's petition was fueled by his desire to have the Constitutional Court reveal its mind and authoritatively pronounce itself on the Constitutionality of the criminal proceedings which had been launched and concluded in the Subordinate court (before the 2nd Respondent) against him (the Appellant).

3.9. Concomitantly with the filing of his petition before the Constitutional Court on 3rd April, 2025, the Appellant launched an *ex-parte* application before a single judge of the Constitutional Court (Mapani-Kawimbe, CCJ) seeking to have this single judge stay the criminal proceedings

against him pending the determination of his petition by the Constitutional Court.

3.10. In her written Ruling delivered on 7th April, 2025 upon the application adverted to in 3.9, Mapani-Kawimbe CCJ declined to grant the *ex-parte* application in question on the basis that it had been misdirected. In declining to grant the application, Mapani-Kawimbe, CCJ reasoned that the application ought, in the first instance, to have been directed to the court (the 2nd Respondent's court), before which the criminal proceedings were pending. Put differently, Mapani-Kawimbe, CCJ, opined that she had no jurisdiction to entertain, leave alone, to grant the application in question.

3.11. On the same date alluded to in para 3.10, the 2nd Respondent delivered his final judgment against the Appellant. In that judgment, the 2nd Respondent found the Appellant guilty on all the three counts of criminal libel founded on section 191 of the Penal Code.

3.12. In convicting the Appellant, the 2nd Respondent drew significant oxygen from a Paper which was presented by Honourable Justice Dr. Patrick Matibini, SC erstwhile Speaker of the National Assembly of Zambia, at the 23rd

Conference of Speakers and Presiding Officers of the Commonwealth.

3.13. In that paper, Dr. Matibini SC made the following observations:

> **"... Freedom of speech and debate or proceedings in parliament ought not to be impeached in any court or place outside parliament. But I must hasten to add that this freedom of speech is limited to the proceedings in the House. Therefore, the freedom extends to anything said in debates on the floor or in standing or selected committees.**
>
> **This... privilege does not, however, extend to press conferences, letters to constituents or to Ministers ..."**

3.14. Adverting to the specific matter which had triggered the criminal proceedings before him, the 2nd Respondent said:

> **"Of importance, in my view, is the connection the former Speaker made of the privilege or freedom of the proceedings in the House or on the floor of the House at that time.**
>
> **The press conference at the Media Centre was, therefore, not connected to anything in the House".**

3.15. On 15th April, 2025, the Appellant filed a petition in the High Court of Zambia, at the Principal Registry, seeking

a variety of relief pursuant to the Constitution of Zambia (as amended); the National Assembly of Zambia (Powers and Privileges) Act, CAP. 12 and the State Proceedings Act, CAP. 71 of the Laws of Zambia. Those reliefs included the Appellant's search for:

(a) a declaration and order that the purported institution of criminal proceedings against him (the Appellant) is unconstitutional and, therefore, null and void; and

(b) an order quashing the unconstitutional purported [criminal] proceedings against him as well as his conviction and sentencing by the subordinate Court and expunging the public records relating to the "unconstitutional institutional institution of criminal proceedings" against him (the Appellant).

3.16. The Appellant's petition as adverted to in the preceding paragraph was supported by an Affidavit in which the Appellant highlighted a variety of grievances prominent of which were the following:

(i) that, he was a Member of Parliament and, as such, enjoyed a number of privileges including freedom of speech within the precincts of the National Assembly;

(ii) that, in the light of the privileges that he was constitutionally entitled to as aforesaid, he was

legally and constitutionally insulated or immunized against any civil or criminal proceedings that could be conceived in relation to anything done by him in pursuance of his freedom of speech;

(iii) that he was charged and convicted of the offence of libel arising from a statement which he made in good faith within the precincts of the National Assembly and in exercise of the freedoms and privileges which were constitutionally available to him as a member of Parliament;

(iv) that, whatever statements he made were protected by the legal and constitutional privileges which his Office as Member of Parliament enjoyed and ought not to have been the subject of the criminal prosecution and conviction in question.

(v) that, in any event, the immunity which is constitutionally availed to his Office as Member of Parliament precluded courts of law from exercising any jurisdiction over him in relation to anything done by him within the precincts of the National Assembly;

(vi) that, by law, any transgression or breach of the law by himself in circumstances such as have been set

out above could only have been the subject of intervention or redress by the National Assembly;

(vii) that his criminal prosecution and conviction were unconstitutional;

(viii) that he made several attempts to stay his criminal prosecution before the Subordinate Court pending the determination of Constitutional issues by the Constitutional Court, including the fact that the 2nd Respondent's purported exercise of judicial authority over him was unconstitutional but no positive outcome was yielded by his efforts.

3.17. In addition to his Affidavit, the Appellant's petition was supported by a List of Authorities and Skeleton Arguments.

3.18. On 29th April, 2025, the Appellant set about to secure some *ex-parte* interim or interlocutory relief before Chocho, J in the way of an order staying execution of the criminal judgment which was entered against him on 7th April, 2025 pending the determination of the Petition which has been alluded to in para 3.15. The search in question was instituted by way of summons supported by an Affidavit.

3.19. In his Affidavit, the Appellant substantively highlighted the same grievances and issues which he highlighted in his Petition and its supporting Affidavit and confirmed that he desired to have the court extend some interim protection or relief as he awaited the determination of the issues which his Petition highlighted.

3.20. For his part, the 1st Respondent reacted to the Appellant's search for interim relief by way of an opposing Affidavit and Skeleton Arguments which were filed in court on 2nd June, 2025.

3.21. The Affidavit alluded to in the preceding paragraph contested a number of key matters which the appellant had deposed to in his Affidavit in support of his search for interim relief.

3.22. One issue which the 1st Respondent projected in his Affidavit in Opposition was that the matters for which the Appellant was arraigned and successfully prosecuted did not arise within the precincts of the National Assembly of Zambia.

3.23. The 2nd issue which the 1st Respondent projected in the way of contesting the Appellant's search for a stay of his criminal conviction was that the stay which the Appellant

was seeking could not properly be delivered by way of civil proceedings.

3.24. As earlier noted, the 1st Respondent also filed Skeleton Arguments in which he fervently contested the propriety of not only the Application for an order to Stay execution of the 2nd Respondent's judgment but, also, the viability of the Appellant's petition.

4.0. HEARING OF THE APPLICATION FOR INTERIM STAY OF EXECUTION

4.1. On 4th June, 2025, the learned judge below (Chocho, J) heard the Appellant's application seeking an Order to stay execution of the criminal judgment in question.

4.2. In prosecuting the application on behalf of the Appellant, Mr. Nkunika, learned Counsel for the Appellant, told the court that they were relying on the Affidavit which had been filed in support of the application together with Skeleton Arguments and a List of Authorities.

4.3. By way of augmentation, Mr. Nkunika briefly told the judge below that the Appellant's application had been filed in pursuance of a serious matter in the nature of the main Petition which was challenging the

constitutionality of the criminal proceedings which had been set in train and concluded against the Appellant.

4.4. The 1st Respondent's Counsel, Mrs. Mundia, opposed the Appellant's application and, in doing so, confirmed having filed an opposing Affidavit and Skeleton Arguments.

4.5. By way of augmentation, Mrs. Mundia told the court below that civil proceedings cannot properly be employed to interfere with criminal proceedings and that criminal proceedings could only be stayed or vacated via like proceedings.

4.6. Mrs. Mundia's second submission was that the Appellant's application had failed to meet the necessary threshold for the grant of an order to stay execution of the judgment in question. Counsel also reiterated that civil proceedings could not be properly employed to thwart criminal proceedings. Mrs. Mundia's final submission was a reiteration of her earlier point that the Appellant's application had failed to meet the legal threshold to warrant granting him the relief he was seeking.

4.7. By way of complimenting Mrs. Mundia, Mr. Mukelabai submitted that the Appellant's application was devoid of merit.

4.8. In his reply, Mr. Nkunika submitted that the Appellant's application seeking a stay was meritorious.

4.9. After the hearing, the learned judge reserved her Ruling to a later date.

5.0. DECISION OF THE COURT BELOW

5.1. In its Ruling which was rendered on 6th June, 2025, the court below acknowledged the nature of the application which had been before her as one in terms of which the Appellant was seeking an order to stay execution. The judge also confirmed that the application in question was supported by an Affidavit, Skeleton Arguments and a List of Authorities.

5.2. After correctly identifying the nature or type of application which was before her it would appear from the Ruling now the subject of the present appeal that the learned judge found herself roving between a motley of issues namely, the application to stay, the substantive petition, preliminary issues, jurisdiction etc. In the end, the court

zeroed in on the issue of jurisdiction and declared that it did not have

> ***"... jurisdiction to hear the petitioner's substantive action".***

5.3. The court accordingly concluded its Ruling in the following terms:

> ***"In view of the foregoing analysis, I hold the view that I have no jurisdiction to hear the petition. The petition is therefore dismissed with costs..."***

6.0. APPEAL TO THIS COURT AND DECISION

6.1. The Appellant was displeased with the Ruling of the Honourable Lady Justice S. Chocho and has now appealed to this court on 2 grounds as follows:

Ground one (01)
The Honourable Court erred in fact and in law when it dismissed the appellant's petition on the basis that it had no jurisdiction to determine the petition

Ground two (02)
The Honourable Court erred in fact and in law when it dismissed the Appellant's application for stay of execution of the judgment of the Subordinate Court on the basis that it had no jurisdiction to hear the petition.

6.2. When this Court convened, in conference, to discuss this and the other appeals and motions in readiness for our November, 2025 session, it became clear to us that the

conclusions which the judge below had reached in her Ruling were, quite evidently, inapt while the grounds of appeal which were framed by the appellant in his reaction to the subject Ruling were a country mile from being on point. By reason of the foregoing, and, in obedience to Rule 58(3) of the Rules of this Court* it became imperative for us to approach this judgment on the basis of:

(a) the conclusions which the court below reached in the Ruling now being assailed; and

(b) our engagement with counsel at the hearing of the appeal.

6.3. We have recounted, in this judgment, the different issues which arose in the matter now the subject of the present appeal and the manner in which the same were dealt with by the court below. In particular, we have highlighted the specific application which formed the basis of this appeal.

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* Rule 58(3) reads, in part, "... in deciding [an] appeal the court shall not be confined to the grounds put forward by appellant:

Provided that the court shall not allow an appeal on any ground not stated in the memorandum of appeal unless the respondent has had sufficient opportunity of contesting the appeal on that ground".

6.4. Although we consider that it would be wholly unproductive for us to unravel the issues intimated in 6.3, we, once again, consider it worthwhile that we remind ourselves as to what the specific genesis of the issues which birthed this appeal were and how, chronologically, they had evolved:

6.4.1. (a) The appellant was convicted on three counts of libel arising from some utterances he made at the Media Centre of the National Assembly of Zambia;

6.4.2. (b) The Appellant petitioned the High Court seeking to have that court declare his conviction unconstitutional and, therefore, null and void.

6.4.3. (c) The Appellant applied to have execution of his conviction stayed pending the determination of his petition in 6.4.2 (b) above.

6.4.4. The High Court (Chocho, J) declined to grant the stay on the basis that she had no jurisdiction to hear and determine the petition in 6.4.2 and proceeded to dismiss the petition.

6.5. It is pertinent (and rather instructive), that we remind ourselves, in this judgment, that the basis of this appeal is the Ruling of Lady Justice Chocho of 6th June, 2025. It is also instructive that we remind ourselves that the application to which Chocho, J, reacted, via her said Ruling of 6th June, 2025, was the one which was filed on 29th April, 2025.

6.6. The foregoing is clearly borne out by Chocho, J's own opening statements in her subject Ruling where she said:

> *"This Ruling is in respect of the petitioner's application in which he seeks an order for stay of execution of judgment (Criminal conviction) against him. The petitioner filed, on April, 29th 2025, ex-parte summons for an order to stay execution of judgment pursuant to order 36(10) of the High Court Rules ... The same was accompanied by Affidavit in Support, Skeleton Arguments and List of Authorities...*
> *The petitioner relies on the averments in his Affidavit in Support of the application ...*

6.7. Chocho, J reviewed the various materials which had been placed before her and then went on to say:

> **"Having found that this court is devoid of jurisdiction to hear the petitioner's substantive action, [it] is otiose to consider the other questions raised for determination in the Preliminary Issue ..."**

6.8. The learned judge then proceeded to conclude her Ruling in the following terms:

> **"6 CONCLUSION**
>
> **6.1. In view of the foregoing analysis, I hold the view that I have no jurisdiction to hear the petition.**
>
> **6.2. The petition is therefore dismissed with costs ..."**

6.9. It is quite evident from the manner in which her Ladyship in the Court below opened her Ruling as reproduced in para.6.6 above that the Judge was very much alive to the fact that her Ruling had to relate to the petitioner's application by which he was seeking an Order for stay of execution of the judgment (Criminal conviction) against him. And yet, beyond the foregoing, there is nothing in the Ruling in question which points to the Court below having made a decision either way in respect of the Stay Application

6.10. It is, indeed, on account of what we have projected in the preceding paragraph that we have been significantly troubled by the second Ground of Appeal which posits that the court below erred in fact and in law when it dismissed the Appellant's application for stay of execution

of the judgment of the Subordinate Court on the basis that it had no jurisdiction to determine the petition.

6.11. We confirm that we do find ourselves in some difficulty to appreciate how the ground adverted to in the preceding paragraph arose or what precisely had inspired it. We say this because there is nowhere in the Ruling under attack where the judge below dismissed the Appellant's application to stay execution of the judgment of the Subordinate Court in any direct sense.

6.12. It is, in point of fact, by reason of the matters we have highlighted in the preceding paragraphs that we consider and have taken the position that the Court below erred when it failed to pronounce itself on the fate of the Application for a stay which had been argued before it.

6.13. Turning to the issues which the lower Court actually pronounced itself upon, we call to mind that during the hearing of this appeal on 14th November, 2025, we engaged Counsel for both sides on the specific issue of whether or not the Petition which Chocho, J dismissed in her Ruling the subject of this appeal on the basis that she had no jurisdiction was before her on 4th June, 2025 when she heard the Appellant's application to stay which

the Appellant filed on 29th April, 2025, the Appellant's Counsel, Mr. Nkunika, could not give a forthright or categorical answer while Mr. Watopa, learned counsel for the 1st Respondent categorically said: **"No it was not".** Upon the court asking Counsel Watopa as to whether or not the Appellant's petition was ever heard, his response was; **"No, my Lord".**

6.14. Having regard to what we have canvassed in the preceding paragraphs, we must ask ourselves: what is our disposition towards the Ruling of Chocho, J and the appeal which had been launched against the same?

6.15 When the learned Judge sat in her chambers on 4th June, 2025 at 08:07 hours, the court business with which she was primarily concerned was the application to stay execution of the criminal judgment which had been entered against the appellant.

6.15. The said application was what was, indeed, introduced by learned counsel for the Appellant, Mr. Nkunika, at that hearing. It was, also, the same application which Learned Counsel for the 1st Respondent, Mrs. Mundia, opposed when her turn to speak arose.

6.16. The application to stay was the only application which was formally and procedurally before Chocho, J. It was, needless to say, the only application which the judge was required and expected to pronounce herself upon.

6.17. The solemn, sacred and disciplined nature of the business of sitting in the judgment seat, the seat of justice, dictated that the learned judge should have confined her role to discharging the only task which was scheduled for her at that time. We say this because the Record of Appeal did not reveal that circumstances developed during the hearing which could have necessitated or dictated the judge's departure from following the usual *"rules of the game"*.

6.18. For the reasons which have been adumbrated above, the learned Judge below clearly misdirected herself and jumped the gun by getting her Ladyship's eyes off the ball and deciding to pronounce herself on what was not formally before her, namely, the Appellant's substantive Petition.

6.19. To put it differently and, indeed, more poignantly in the context of the first ground of appeal, the judge below could not have dismissed the Appellant's petition for the

simple and obvious reason that the petition was not formally before her for the purpose of its hearing on 4th June, 2025 at 08:07 hours, the said date and time having been reserved for the purpose of hearing the Appellant's application to stay his criminal conviction.

6.20. We must, at this stage, call to mind our observations in our unreported decision in **Roan Antelope Mining Corporation of Zambia PLC (In Receivership) ("RAMCOZ") v Transityre BV Michelin Export Facilities: SCZ Appeal No.173/2003**[1] where we said:

> **We have considered the arguments before us. The view we take is that Mr Musonda is correct that the lower Court mistakenly and erroneously made a Ruling on all the issues raised in the main motion thus concluding the main motion without hearing the parties on the main motion. We agree that that was a misdirection....**
>
> **As we indicated at the hearing... the matter had to go back to the lower Court, ... for [that] court to pronounce itself on the preliminary point and [thereafter] to proceed to the main motion before it.**

6.21. More recently, in **Natural Valley Limited- v – Zambia Revenue Authority and Attorney-General**[2] this Court

decided that an Order which a judge of the High Court had issued in relation to an application upon which the parties to the same had not been heard amounted to no decision at all by reason of the same not having been **"...a product of due process".**

7.0. CONCLUSION

7.1. What conclusion do we draw from the preceding discourse?

7.2. The conclusion which we are inclined to draw from the preceding discussion is that the learned judge below clearly misdirected herself in the manner she dealt with both the appellant's Application for an Order to Stay Criminal Proceedings and the said party's Petition from which the Stay was to draw its oxygen.

7.3. As we have noted above, the only hearing which the lower Court was entitled to conduct on 4th June, 2025 was the one in respect of the Appellant's Application to Stay the criminal proceedings against him. Needless to say, the lower Court's Ruling which excited this appeal should have been confined to that Application. As earlier announced, the Court erred by failing to render a Ruling

on the Application which it even acknowledged in the Ruling under attack. Under these circumstances, we remit this matter back to the Judge concerned so that she can pronounce herself on the Application which she heard on 4th June, 2025.

7.4 As regards the lower Court's decision to volunteer a Ruling on the Applicant's Petition, we consider that decision and the relative Ruling to have constituted a misdirection in the light of the reasons which have been adumbrated in this judgment. Accordingly, we set aside that misapprehended Ruling.

7.5 As to the issue of costs, we consider that, having regard to the manner in which this appeal has been resolved, it is only fair that each party bears its own costs in this court.

M. MUSONDA, SC
DEPUTY CHIEF JUSTICE

N. K. MUTUNA
SUPREME COURT JUDGE

F. M. CHISANGA
SUPREME COURT JUDGE